

the proceedings as otherwise provided by law for a superior court, or a judge of the superior court, including, but not limited to, the matters authorized by Section 128 of the Code of Civil Procedure." Probate Code section 17000 states that "The superior court having jurisdiction over the trust pursuant to this part has exclusive jurisdiction of proceedings concerning the internal affairs of trusts." (Prob. Code § 17000(a).) The Probate Court similarly has jurisdiction over proceedings concerning the internal affairs of a trust under Probate Code section 17200.

While there may be certain factual issues in the Probate Case that may overlap with issues in this case, they arise in a different legal and statutory context. There are other statutory and legal issues within the scope of the Probate Case that the probate court is in a far superior position to address. It is not clear to the Court that a petition to probate a "lost will," to determine the executor, and to issue letters testamentary would be properly before the civil division of the Court, or that the legal and factual issues to take those actions and make those determinations are necessarily common to the elder abuse claims in this case. (See also Local Civ. R. 7.1 ["Matters governed by the Probate Code . . . shall be set for hearing in the department(s) designated by the Presiding Judge. These departments will be known collectively as the Probate Division. All Probate Division cases subject to this rule will be assigned to one judge for all purposes unless otherwise determined by the Presiding Judge for good cause."].)

The Court agrees with Plaintiff that Plaintiff's standing in this civil action may be determined incidentally by the proceedings before the probate court. The Court also agrees that avoiding a duplication of discovery efforts or inconsistent rulings are proper goals, but there are alternative means to achieve those goals other than full consolidation of the Probate Case with this civil action. Though defendant's attorney declares they met and conferred regarding consolidation as directed by the Court at the February 13, 2026 case management conference, defendant's attorney declares they were unable to reach any resolution.

Plaintiff's motion only requests full consolidation of the two actions. Neither party has suggested as an alternative that the Court partially consolidate the cases for purposes of discovery only, so that discovery taken in one action can be used in the other. Alternatively, the parties could so stipulate. The relief sought in the motion is limited to full consolidation, however, and the Court in its discretion finds full consolidation is not appropriate under the circumstances. If either party believes that a stay of this action is necessary and appropriate in light of the pending probate action, the parties are encouraged to confer on a stipulation or else either party can bring such a motion.

5. 9:00 AM CASE NUMBER: C23-01654
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. CHRISTINA HARRIS
***HEARING ON MOTION IN RE: VACATE THE CONDITIONAL DISMISSAL AND FOR ENTRY OF JUDGMENT CCP 664.6**
FILED BY: AMERICAN EXPRESS NATIONAL BANK
TENTATIVE RULING:

Plaintiff American Express National Bank ("Plaintiff") filed a Motion to Vacate the Conditional Dismissal and for Entry of Judgment on February 3, 2026 ("Motion to Enforce Settlement"). The Motion to Enforce Settlement was set for hearing on June 22, 2026. The motion is unopposed.

Background

The parties entered into that certain settlement agreement on or about May 3, 2024 (the “Settlement Agreement”), the terms of which included payment by the defendant Christina Harris (“Defendant”) in the amount of \$28,311.33, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Scott D. Dyle filed February 3, 2026 (“Supporting Declaration”), ¶¶3-5 and **Exhibit A** thereto (Settlement Agreement).

Analysis

Defendant was duly served with the motion. The motion is unopposed.

The Settlement Agreement includes a provision that it is enforceable pursuant to Code of Civil Procedure section 664.6 and jurisdiction is reserved to the Court for that purpose. Settlement Agreement, ¶13, Supporting Declaration, **Exhibit A**. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.* at ¶12.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶¶2-6. Defendant failed to cure after notice. *Id.* at ¶8 and **Exhibit B** thereto.

After credit for amounts paid, there remains \$16,809.58 due and owing, plus costs of \$575.00, for a total of \$17,384.58. See Supporting Declaration, ¶10.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. **Subject to Paragraph 4 below**, the Motion to Enforce Settlement is GRANTED.
 - a. Plaintiff shall have judgment against Defendant in the principal amount of \$16,809.58, plus costs of \$575.00, for a total of \$17,384.58.
 - b. Plaintiff’s submitted form of money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant and/or notice of conditional settlement is hereby set aside in connection with entry of such judgment.
4. Although the Court finds that Defendant was duly served with the motion papers, it is not clear that the papers, *as served*, contained the hearing information (date, time, etc.). THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers which contained notice of the assigned hearing information at the time of service or if separate notice of the assigned hearing date was otherwise subsequently given.

6. 9:00 AM CASE NUMBER: C23-02588
CASE NAME: JAVETA JOHNSON VS. YAQUELIN REYES
***HEARING ON MINOR'S COMPROMISE RE KEITH JORDAN**
FILED BY: JOHNSON, JAVETA
TENTATIVE RULING:

Petitioner Sandra Jordan, the duly appointed guardian ad litem herein on behalf of the claimant Keith Jordan (the "Claimant"), filed a Petition for Approval of Compromise of Claim (Person with a Disability) on or about February 11, 2026 (the "Petition for Approval of Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Petition for Approval of Compromise was set for hearing on June 22, 2025.

Analysis

The Petition for Approval of Compromise is unopposed. The Court has considered the verified Petition for Approval of Compromise.

The proposed terms indicate \$6,000 in attorneys' fees and expenses of \$2,716.60 paid out of the Claimant's share, totaling \$8,716.60 and leaving a balance of \$6,283.40 for the Claimant out of the \$15,000 in settlement funds earmarked for the Claimant. The \$6,000 attorneys' fees represents 40% of Claimant's recovery based on contingency fee arrangement. The Petition for Approval of Compromise indicates that "[t]he money will be held by Sandra Jordan for the benefit of Keith Jordan."

Aside from two issues, the Court concludes the proposed terms are just and reasonable.

The Court is concerned about the 50% split of the total expenses (\$5,433.20) given the non-equal split of the settlement proceeds. The Court is also concerned about what safeguards will be put in place to ensure that the proceeds will be used for benefit of Claimant.

Disposition

The Court finds and rules as follows:

1. MOVING PARTY TO APPEAR to address the issues discussed above.

7. 9:00 AM CASE NUMBER: C24-00425
CASE NAME: M. L. S. BUILDER INC. VS. SEANDAN NG
***MOTION/PETITION TO COMPEL ARBITRATION AND STAY PROCEEDING NOTICE**
FILED BY: M. L. S. BUILDER INC.
TENTATIVE RULING:

Plaintiff moves to compel arbitration. Defendant, Seandan Ng, opposes the motion. Because plaintiff has met its burden to establish the existence of an enforceable arbitration agreement, the motion is **GRANTED**, as discussed below.

Parties are ordered to submit their dispute to arbitration as specified in their agreement. **The Court sets a case management conference on December 15, 2026 at 8:30 a.m. in this Department**